

HOUSE No. 1799

The Commonwealth of Massachusetts

PRESENTED BY:

Bradley H. Jones, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to check fraud prevention.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>1/17/2025</i>
<i>Kimberly N. Ferguson</i>	<i>1st Worcester</i>	<i>1/17/2025</i>
<i>Paul K. Frost</i>	<i>7th Worcester</i>	<i>1/31/2025</i>
<i>Todd M. Smola</i>	<i>1st Hampden</i>	<i>3/10/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>11/3/2025</i>

HOUSE No. 1799

By Representative Jones of North Reading, a petition (accompanied by bill, House, No. 1799) of Bradley H. Jones, Jr., and others relative to penalties for check fraud. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to check fraud prevention.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 30 of chapter 266 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by adding at the end of the first paragraph the following
3 sentence:-

4 If the larceny involved monies received through the uttering of a forged, altered or
5 counterfeit check, draft or order for the payment of money from any bank or other depository,
6 action may be taken before either the court having jurisdiction where the uttering took place or
7 where the payee bank or other depository's main office is located.

8 SECTION 2. Section 37 of said chapter 266, as so appearing, is hereby amended by
9 adding at the end thereof the following sentence:-

10 Action may be taken before either the court having jurisdiction where the crime was
11 committed or where the main office of the bank or other depository are located.

SECTION 3. Chapter 266 of the General Laws, as so appearing, is hereby amended by inserting after section 37 the following new section:-

Section 37 ½ Check washing; penalties

Whoever engages in the act of check washing shall be punished by imprisonment in the state prison for not more than ten years, or by a fine of not more than fifty thousand dollars, if the amount of funds fraudulently obtained or attempted to be obtained exceeds \$1,200; or, if the amount of funds fraudulently obtained or attempted to be obtained does not exceed \$1,200, shall be punished by imprisonment in jail for not more than two years or by a fine of not more than \$3,000.

For the purposes of this section, “check washing” shall be defined as the act of intercepting a check or money order and chemically or otherwise altering the check or money order to change the name of the payee, the dollar amount, or both and fraudulently cashing or depositing, or attempting to cash or deposit, the check or money order.